Precedent memo: Orchard Row Bakery v. Flynn

Marion County Circuit Court, decided 2021-05-18 - memo by the employment group

1. Holding

Final paycheck penalty wages were awarded because the last check was issued 6 business days after termination, not by the end of the next business day.

2. Facts

Flynn was fired on a Tuesday; the check was mailed the next Wednesday.

3. Firm position

We represented Flynn. Penalty wages run up to 30 days.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.